

		presiding judge of the court where the litigation is proposed to be filed. Moving party to give notice.
109	Kersten, M.D. v. Alicia Surgery Center, 2026-01553019	DEMURRER – MOOT
110	Kish v. Hyundai Motor America, 2026-01560834	MOTION TO COMPEL ARBITRATION – DENIED Defendant Hyundai Motor America (“Defendant”) moves for an order compelling plaintiff Jennifer C. Kish (“Plaintiff”) to arbitrate all claims raised in this action and staying this action pending resolution of arbitration pursuant to two arbitration clauses contained in the Owner’s Handbook & Warranty Information (Owner’s Handbook) and the Bluelink Connected Services Agreement (CSA). “ ‘Under “both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.” ’ ” (Long v. Provide Commerce, Inc. (2016) Cal.App.4th 855, 861.) “ ‘[G]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.’ ” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.) “ ‘Mutual assent, or consent, of the parties “is essential to the existence of a contract” [citations], and “[c]onsent is not mutual, unless the parties all agree upon the same thing in the same sense” [citation]. “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings.” ’ ” (B.D. v. Blizzard Entertainment, Inc. (2022) 76 Cal.App.5th 931, 943 (“Blizzard”).)